

HOUSE BILL 1907

By McCalmon

AN ACT to amend Tennessee Code Annotated, Title 8,
Chapter 25; Title 8, Chapter 34; Title 8, Chapter
35 and Title 8, Chapter 36, relative to retirement.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-25-110, is amended by deleting the section and substituting:

(a) Except as provided in subsection (e), when a subpoena duces tecum is served upon a person or entity administering or providing services to a deferred compensation plan established pursuant to this part in an action or proceeding in which the person or entity is not a party, and such subpoena requires the production of all or any part of the records of the deferred compensation plan relating to a present or former plan participant, it is sufficient compliance therewith if the person or entity within fourteen (14) days after being served with a subpoena duces tecum, shall file with the court clerk or the issuer, either by personal delivery, certified or registered mail, or electronic transmission, a true and correct copy, which may be a copy reproduced on film or other reproducing material by microfilming, photographing, or other approximate process, or a facsimile, exemplification or copy of such reproduction or copy, of all records specifically described in such subpoena.

(b) The records must be accompanied by an affidavit, or declaration as permitted under the Tennessee Rules of Civil Procedure, of a custodian stating in substance that:

(1) The affiant or declarant is the duly authorized custodian of the records and has authority to certify the records; and

(2) The copy is a true copy of all the records described in the subpoena.

(c) If the person or entity has none of the records described, or only part thereof, the custodian shall so state in the affidavit or declaration and file the affidavit or declaration and such records as are available in the manner prescribed in this section.

(d)

(1) The copy of the record is admissible in evidence to the same extent as though the original thereof were offered and the custodian had been present and testified to the matters stated in the affidavit or declaration.

(2) The affidavit or declaration is admissible in evidence and the matters stated therein are presumed true in the absence of a preponderance of evidence to the contrary.

(3) When more than one (1) person has knowledge of the facts, more than one (1) affidavit or declaration may be made.

(e) The personal attendance of the custodian may be commanded only if personal attendance is necessary to resolve a good faith dispute concerning the accuracy of the information to be furnished. Where personal attendance of the custodian is required, the subpoena duces tecum must contain a clause that reads: "The procedure authorized pursuant to § 8-25-110 will not be deemed sufficient compliance with this subpoena."

SECTION 2. Tennessee Code Annotated, Section 8-34-210, is amended by deleting the section and substituting:

(a) Except as otherwise provided in this section, when a subpoena duces tecum is served upon any employee of the retirement system in an action or proceeding in which the retirement system is not a party, and such subpoena requires the production of all or any part of the records of the retirement system relating to any member, prior

member or retiree of the retirement system, it is sufficient compliance therewith if the employee within fourteen (14) days after being served with a subpoena duces tecum, shall file with the court clerk or the issuer, either by personal delivery, certified or registered mail, or electronic transmission, a true and correct copy, which may be a copy reproduced on film or other reproducing material by microfilming, photographing, or other approximate process, or a facsimile, exemplification or copy of such reproduction or copy, of all records specifically described in such subpoena.

(b) The records must be accompanied by an affidavit, or declaration as permitted under the Tennessee Rules of Civil Procedure, of a custodian stating in substance that:

(1) The affiant or declarant is the duly authorized custodian of the records and has authority to certify the records; and

(2) The copy is a true copy of all the records described in the subpoena.

(c) If the retirement system has none of the records described, or only part thereof, the custodian shall so state in the affidavit or declaration and file the affidavit or declaration and such records as are available in the manner prescribed in this section.

(d)

(1) The copy of the record is admissible in evidence to the same extent as though the original thereof were offered and the custodian had been present and testified to the matters stated in the affidavit or declaration.

(2) The affidavit or declaration is admissible in evidence and the matters stated therein are presumed true in the absence of a preponderance of evidence to the contrary.

(3) When more than one (1) person has knowledge of the facts, more than one (1) affidavit or declaration may be made.

(e) The personal attendance of the custodian may be commanded only if personal attendance is necessary to resolve a good faith dispute concerning the accuracy of information furnished by the retirement system. Where personal attendance of the custodian is required, the subpoena duces tecum must contain a clause that reads: "The procedure authorized pursuant to § 8-34-210 will not be deemed sufficient compliance with this subpoena."

SECTION 3. Tennessee Code Annotated, Section 8-36-117(b), is amended by deleting the subsection and substituting:

(b) All monthly benefit payments shall cease in the month in which the payee dies, unless otherwise specifically provided for in chapters 34-37 of this title. If the payee was a retired member who did not elect an optional allowance pursuant to § 8-36-601, a monthly benefit payment must be issued for the month in which the retired member died and is payable to the member. If the payee was a beneficiary receiving benefits under the terms of an optional allowance, a monthly benefit payment must be issued for the month in which the beneficiary died and must be paid to the beneficiary.

SECTION 4. Tennessee Code Annotated, Section 8-36-805(b), is amended by deleting the subsection.

SECTION 5. Tennessee Code Annotated, Title 8, Chapter 36, Part 8, is amended by adding the following new section:

For a member returning to temporary reemployment pursuant to this part with an effective date of retirement between July 1, 2022, and June 30, 2027, if the retirement system discovers that the member did not have a bona fide separation of service as defined in § 8-36-805, then the member must be treated as receiving an in-service distribution. The retirement system shall make any required tax reporting changes to reflect the in-service distribution in years prior to the retirement system's discovery that

the retiree did not have a bona fide separation of service. After the member's completion of the temporary reemployment period in which the retirement system discovered that the member did not have a bona fide separation of service, the member must not continue to receive an in-service distribution and must have a bona fide separation of service before starting another temporary reemployment period pursuant to this part.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it.